

**COMMONWEALTH OF MASSACHUSETTS
OPERATIONAL SERVICES DIVISION
Request for Response (RFR)**

**Document Title: FAC115 Security Services, Private Investigative
Services, and Fence Rental**

Agency Document Number: FAC115

COMMBUYS Bid#: BD-22-OSD03-SRC01-7035

March 29, 2022



Please Note: This is a single document associated with a complete Bid (also referred to as Solicitation) that can be found on www.COMMBUYS.com. Bidders are responsible for reviewing and complying with all Bid requirements. Bidders may contact the OSD Help Desk at OSDHelpdesk@mass.gov or at 1-888-MA-STATE for technical assistance with COMMBUYS. The Help Desk is staffed from 8:00 AM to 5:00 PM Monday through Friday Eastern time, as applicable, except on [federal and state holidays](#).

Bidders with disabilities or hardships that seek reasonable accommodation, which may include the receipt of RFR information in an alternative format, must communicate such requests in writing to the contact person. Requests for accommodation will be addressed on a case-by-case basis. A Bidder requesting accommodation must submit a written statement which describes the Bidder's disability and the requested accommodation to the contact person for the RFR. The SST reserves the right to reject unreasonable requests.

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Revision History

Version Number	Date	Author	Brief Description
1.0	03/29/2022	Kelly Thompson Clark	Initial release

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1 INTRODUCTION AND BID OVERVIEW

1.1 Summary Description of Procurement

The Commonwealth of Massachusetts and the FAC115 Strategic Sourcing Team (SST) are soliciting Bidders for the acquisition of Security Services, Private Investigative Services, and Fence Rentals. Historically, services are available from a wide variety of authorized dealers representing various providers. Due to the changing landscape of security services and agency expectations, this contract will also focus on the training standards and development of personnel by the Contractors and how they maintain employee skill levels throughout the life of the contract. The resulting Contract will replace FAC93 and will also be available for use by other [Eligible Entities](#).

This Contract includes three (3) individual categories:

Category 1 - Security Services

Category 2 - Private Investigative Services

Category 3 - Fence Rental Services

The purchase of these services may be for either long-term or short-term assignments. Agencies ordering services under this contract will produce their own scope of work with the Contractor. Upon assignment in Category 1, the Contractor must furnish all necessary labor, vehicles, supervision, field office trailer, electrical service, telephone service, (cell phone, laptop, tablet, GPS device for vehicles, two-way radio, et al.), uniforms, materials, equipment, and supplies to satisfactorily perform required security services. Upon assignment in Category 2, the contractor must furnish all necessary labor, vehicles, and equipment required to complete assignment, including surveillance equipment, and provide items requested by agency/user in the Statement of Work. Fence rentals may be obtained from this contract through the use of a subcontractor. Pricing for fence rentals will be obtained through quotes.

1.2 Estimated Procurement Calendar

Action	Date
Announcement of Intent to Procure	January 21, 2022
Bid Release Date	March 29, 2022
Bidders Conference	April 5, 2022, 1:00 PM EST https://attendee.gotowebinar.com/register/849643633758493196
Deadline for submission of written questions through COMMBUYS "Bid Q&A"	April 7, 2022, 2:00 PM EST
Official answers for Bid Q&A published (Estimated)	April 8, 2022
Training for Online Submission – Contractors that have not previously submitted electronic quotes via COMMBUYS are strongly encouraged to attend training. Please find training dates and information: https://www.mass.gov/doc/vendor-training-schedule/download	Dates and Times Available: April 20, 2022, 1:00 PM EST
	Online Webinar: This interactive webcast provides instructions on several activities: Locating and responding to bids; Using the bid Q&A feature; Creating a quote response; Revising a Quote response. Access the webcast here .
Bid Amendment Deadline. Online Quote	April 13, 2022

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submission begins. Bid documents will not be amended after this date.	
<u>Deadline for Quotes/Bid Responses</u> ("Bid Opening Date/Time" in COMMBUYS)	May 3, 2022, 3:00 PM Late bids will not be considered.
Notification of Apparent Successful Bidder(s) (Estimated)	May 17, 2022
Estimated Contract Start Date (actual start date will be the contract effective date, which is the date the contract is executed by the parties)	June 1, 2022

*See [Appendix 2](#), "Training for Vendors Responding to Bids On COMMBUYS" for instructions on how to register for live webinar and additional trainings that may be helpful to prospective bidders.

Visit <https://www.mass.gov/doc/vendor-training-schedule/download> for additional Instructor-Led Training and Webinar dates.

Times are Eastern Standard (US), as displayed on the COMMBUYS system clock after logging in. If there is a conflict between the dates in this Procurement Calendar and dates in the Bid's Header, the dates in the Bid's Header on COMMBUYS shall prevail. Bidders are responsible for checking the Bid record, including Bid Q & A, on COMMBUYS for Procurement Calendar updates.

1.2.1 Submission of Bid Questions

The "Bid Q & A" function in COMMBUYS allows Bidders to ask written questions and receive written answers regarding this Bid. To locate the Bid Q & A, log into COMMBUYS, locate the Bid, acknowledge receipt of the Bid, and scroll down to the bottom of the Bid Header page. The "Bid Q & A" button allows Bidder's access to the Bid Q & A page.

All questions must be submitted through the Bid Q & A page. Questions must be asked prior to the [Deadline stated in the Estimated Procurement Calendar](#). The Strategic Sourcing Team (SST) reserves the right not to respond to late questions. Bidders are responsible for verifying that their questions are recorded in COMMBUYS and appear on the Bid Q & A page.

Questions submitted to the SST outside of COMMBUYS will not be answered.

Content entered must be suitable for public viewing. Bidders must not include inappropriate content, including but not limited to, information that could be considered personal, security sensitive, inflammatory, incorrect, or collusory. The SST reserves the right to edit or delete any inappropriate content.

All answers are final when posted. Any subsequent revisions to previously provided answers will be dated.

1.2.2 Bid Amendment Deadline

The SST reserves the right to make amendments to the Bid after initial publication. It is each Bidder's responsibility to check COMMBUYS for any amendments, addenda or modifications to this Bid, and any Bid Q & A records related to this Bid. The SST and the Commonwealth accept no responsibility and will provide no accommodation to Bidders who submit a Quote based on an out-of-date Bid or on information received from a source other than COMMBUYS.

At the SST's discretion, the Bid Amendment Deadline may be extended. Should this occur, the "Deadline for Quotes/Responses" shall be extended as well. As stated above, it is the responsibility of the bidder for checking the Bid record in COMMBUYS for revisions and updates.

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1.2.3 Bidders' Conference

The Bidders' Conference is a web or telephone conference conducted by the SST for the purpose of informing prospective Bidders about general Bid information. All questions related to the scope and technical requirements should be submitted using the Bid Q and A module in COMMBUYS.

Attendance is strongly suggested. Please refer to the Bidders' Conference Section 1.2 of Estimated Procurement Calendar for event details and link to information,
<https://attendee.gotowebinar.com/register/849643633758493196>.

1.2.4 Late Bids will not be Considered

Bid responses must be received in full by the bid opening date and time shown on COMMBUYS ("Bid Opening Date/Time", i.e., the Deadline for Quotes/Bid Responses). Proposals received after the deadline will be ineligible for consideration and deemed non-responsive. Each bidder/offeror must submit all required bid response forms electronically through COMMBUYS. When submitting a quote electronically through COMMBUYS, please allow sufficient time to complete any online forms and upload documents. If you are in the middle of uploading your proposal when the deadline is reached, the system will stop the process and you will be unable to submit your Quote. It is recommended that Quotes be submitted as far in advance as possible before the deadline to allow time to obtain assistance from the OSD Help Desk if needed.

1.2.5 Debriefing

The SST will conduct debriefings for unsuccessful Bidders, if requested within 14 calendar days of notification that your Quote has not been selected for an award. Debriefing guidelines will be provided in advance prior to the debriefing.

1.3 Additional Bid Information

1.3.1 Anticipated Contract Duration:

This contract has a maximum possible contract duration of 5 (five) years. There are no options for renewal.

1.3.2 Performance and payment time frames which exceed Contract duration

All agreements for services entered during the duration of this Contract and whose performance and payment time frames extend beyond the duration of this Contract shall remain in effect for performance and payment purposes (limited to the time frame and services established per each written agreement). No written agreement shall extend more than 12 (twelve) months beyond the final termination date of this Statewide Contract. No new agreements for services may be executed after the Contract has expired.

1.3.3 Estimated Value of the Contract

The estimated value of purchase(s) resulting from this Bid is \$50,000,000.00. The Commonwealth makes no guarantee that any commodities or services will be purchased from any Contract resulting from this Bid. Any estimates or past procurement volumes referenced in this Bid are included only for the convenience of Bidders and are not to be relied upon as any indication of future purchase levels.

This Estimated Value was derived by reviewing Contractor sales reports to Commonwealth of Massachusetts eligible entities for FY2019 to FY2021.

1.3.4 Estimated Number of Awards

The target maximum number of Contractors is up to twenty (20). The SST may award more or fewer contracts, if it is in the best interests of the Commonwealth to do so.

1.3.5 Adding Contractors after initial Contract Award

If, over the life of the Contract, the SST determines that additional Contractors should be added to meet the requirements of the Commonwealth, these may first be drawn from qualified companies which responded to this Bid but were not awarded contracts and/or the Bid may be reopened to obtain additional Quotes.

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1.3.6 Acquisition Method(s):

Check All Applicable ("X"):	Category
☒	Fee-For-Service
☐	Outright Purchase
☒	Rental (not to exceed 6 months)
☐	Term Lease
☐	License
☐	Other:

1.3.7 Entities Eligible to Use the Resulting Contract

Any Contract(s) resulting from this Bid will be open for use by the following entities:

- Cities, towns, districts, counties, and other political subdivisions
- Executive, Legislative and Judicial Branches, including all Departments and elected offices therein
- Independent public authorities, commissions, and quasi-public agencies
- Local public libraries, public school districts and charter schools
- Public hospitals owned by the Commonwealth
- Public institutions of higher education
- Public purchasing cooperatives
- [Non-profit organizations that are doing business with the Commonwealth;](#)
- Other states and territories with no prior approval by the State Purchasing Agent; and
- Other entities when designated in writing by the State Purchasing Agent.

Each eligible entity is responsible for executing its own purchase orders and paying its own invoices for goods and/or services acquired from this Contract. Contractors will be responsible for marketing their goods and/or services to Commonwealth Agencies and other eligible entities.

2 ADDITIONAL INFORMATION ON PROCUREMENT SCOPE

2.1 Procurement Exclusions

The intent of this statewide contract will be to allow a means for eligible entities to procure the products and related services as listed above. While some product overlap with existing statewide contracts is allowed (i.e., products bundled as part of a system purchase), items that are offered on Statewide Contracts (and any of the successor statewide contracts) with the primary use as listed below will be excluded unless identified in this RFR and any attachments.

The lists of products and services that are NOT allowed under this contract include, but are not limited to the following:

- Homeland Security, Public Safety, and Traffic Safety Supplies - available under HLS06
- Security, Surveillance, Monitoring, and Access Control – available under ITC71
- Radio related Products and Services, including Public Safety Communication Equipment – available under PSE01
- Fencing Services Related to Trades Services, Construction, and Non-Public Safety Use – available under TRD01

3 BIDDER QUALIFICATIONS

Bidders must meet the qualifications stated within this RFR and must maintain their qualifications for the duration of the resulting contract, if any. In addition, Bidders must submit a completed Bidder Response Form with their Bid.

3.1 Company Experience and Years in the Industry

In order to qualify to respond to this RFR, Bidders must have been in the business of providing Security Services for a minimum of three (3) years; Private Investigative Services for a minimum of two (2) years; and Fencing Rental

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Services for a minimum of two (2) years; and the most recent two (2) consecutive years in business prior to the RFR submission deadline (See RFR Section 1.2, Estimated Procurement Calendar).

In the case of companies formed fewer than two (2) prior to this date via merger, acquisition or some other means, the SST may consider the experience of all companies involved in the merger or acquisition.

3.2 Employee and/or business technical/business experience, certifications, licenses

The Bidder and applicable subcontractors **must** possess all federal, state, and local permits and licenses necessary to provide the services offered in response to this bid. The Contractor shall inform himself/herself as to, and shall comply with, the provisions of all Federal, State, and local laws, ordinances, and regulations applicable to and governing the services called for in this contract.

Bidders for Security Services must include a pdf attachment of their current Watch Guard Manager License or certification(s) by the [Mass Certification Unit](#) with their bid. Bidders for Private Investigative Services must include a current Private Investigator's License. Both licenses are issued by the Massachusetts State Police. If Bidder is responding to both Category I Security Services and Category II Private Investigative Services, both the Watch Guard Manager and Private Investigator's License are required.

For information on licensing as a Watch Guard Patrol Agency or Private Investigator, please go to <http://mspcert.chs.state.ma.us/cert>.

Armed personnel must hold a current Massachusetts Firearms License and attend training*

3.2.1 Other Requirements

Weapons are not authorized without written approval from the Contract Manager and Site Manager of each entity. "Weapons" include, but are not limited to, firearms, batons, electronic control devices, mace/pepper spray, and knives

**Pursuant to c. 140, § 131P, an applicant for a License to Carry (LTC) or Firearms Identification Card (FID) who was not licensed on June 1, 1998 must submit to the licensing authority a basic firearms safety certificate. Please refer to the following link for any updates, <https://malegislature.gov/Laws/GeneralLaws/PartI/TitleX/Chapter140/Section131>*

3.2.2 Capacity Plan (Category I and Category II)

Contractors must have the manpower capabilities for this contract. Bidder's must have a pool of trained and/or cross-trained replacement security guards or PI's who can be called upon in an emergency situation or for extra coverage as needed. Bidders must provide number of additional resources on the Attachment A Bidder Response Form.

Having a physical presence (office locations) in Massachusetts will carry weight during the evaluation process.

3.3 Continuity of Operations Plan (COOP)

Bidder must ensure they can continue to perform their mission essential functions during a wide range of emergencies. Please note Section 2.4, Emergency Response Capabilities.

3.4 Emergency Response Capabilities

In a declared state of emergency where the safety and wellbeing of Commonwealth citizens are at risk, contractors may be asked to supply the Commonwealth with the commodities and/or services under the Statewide Contract on a priority basis. The Bidder's Response should include the following:

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- Indicate whether there is a written Continuity of Operations Plan (COOP) that describes how the company will continue to do business in case of an emergency.
- A list of emergency contact information including name, position/title, phone, email, and cell phone.
- A list of the Bidder's building location (s) that would be available to serve the Commonwealth during an emergency.
- A description of the areas of Massachusetts that the Bidder could supply in the event of an emergency (e.g., Entire State, Specific City or Region).

3.5 Financial stability including DUNS report, bankruptcy, litigation, and contract defaults

3.5.1 Financial statement for most recently completed fiscal year

No contracts will be awarded without a Statement of Financial Stability.

3.5.2 Bankruptcy, litigation, and contract defaults

Bidders must provide a list of any outstanding contingencies, such as lawsuits or other claims or charges, against the Bidder related to performance of the services sought under this RFR.

3.6 References and reference information and/or requirements

All Bidders must complete the Reference Tab on Attachment A Bidder Response Form. Bidders must list between three (3) and five (5) business references. References for whom the Bidder has provided services to in the Commonwealth of Massachusetts are encouraged. Failure to provide at least three (3) references with their valid email addresses may result in a Bidder's disqualification. While up to five (5) references may be listed by a Bidder, only the first three (3) responses received from the Bidder's references will be included in a Bidder's evaluation score.

4 COMMODITY, SERVICE, ENVIRONMENTAL, AND COST SPECIFICATIONS

4.1 Service Categories

Services provided through this Contract are divided into three (3) Service Categories. Bidders shall reference the **mandatory** and **desirable** specifications for each Category of this RFR in Category I, Security Services and Category II, Private Investigative Services and/or Category III, Fence Rental Services. Bidders may bid on either Category I, Category II or Category III or any/all categories.

Information about site/floor plans or security surveillance systems within any building or grounds of eligible entities MUST be kept confidential. Any violation of this requirement could lead to termination an awarded contract.

4.1.1 Category I: Security Services

1. Training Standards

i. Basic Training Elements

1. Basic Security Officer
2. General Standards of Conduct
3. Uniform Standards and Command Presence
4. First Aid, CPR, AED
5. Bloodborne Pathogens and Universal Precautions
6. Workplace Health and Safety
7. Report Writing
8. Patrol Concepts
9. Radio/Phone Use and Etiquette
10. Security Screening
11. De-escalation and Interpersonal Communication
 - a. Diversity/Avoiding Bias
12. Use of Force
13. Patrol Vehicle Operations
14. Terrorism Awareness

ii. Professional Development

1. Supervisor Development
2. Leadership Training

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3. Investigations and Interviewing
4. Physical Security
5. Awareness and Crime Prevention
2. Hours to be worked
3. Number of necessary personnel based on SOW (scope of work)
4. Establish Chain of Command and Notification Procedures
5. Field office (if needed)
6. Exact duties requested (patrol, motor patrol, reception, etc.)
7. Special equipment (vehicle, bicycle, lighting, portable toilets, etc.)
8. Communication processes expected (based on SOW)
 - a. Guard time tracking (process by which contractor confirms guard whereabouts upon shift check- in/check-out).
 - b. Information on Off-hours Inspection processes.
9. Uniform Standards
10. Documentation needed (daily logs, tour logs, etc.) to ensure compliance
 - a. Refer to 8a of this section.
11. Design/layout of patrol management system (if applicable)
12. Site specific policies/post orders (weapons, screening equipment, visitors, etc.)

4.1.2 Required Bidder Qualifications

Submit a detailed description of Bidder's Qualifications including description of material resources to be provided by Bidder (industry experience uniforms, radios, cell phones, screening equipment, number of vehicles, weapons, first aid kits, weapons, (age, model, serial number).

All bidders that are bidding in Category I - Security Services must assure in writing that all Security Service personnel assigned to work with the various Commonwealth departments, cities, towns, or eligible entities are trained and certified/licensed in the following additional areas. Please use Attachment A, Bidder Information and/or Certifications/Licenses Tab(s) for your response:

- CPR
- First Aid
- AED (Defibrillator)
- [Commonwealth of Massachusetts Executive Order 504](#) on Security and Confidentiality of Personal Data and Information
- Valid Driver's License if using Contractor Vehicle

4.1.3 Category II: Private Investigative Services

1. Hours to be worked
2. Number of personnel needed
3. Exact assignments requested (detail of investigation(s))
4. Communication process
5. Documentation and type of reporting determined
6. Length of projects (short-term or long-term)

4.1.4 Required Bidder Qualifications

Submit a detailed description of Bidder's Qualifications as a licensed PI Agency including vehicles used, industry experience, detective, police, or military experience, and experience submitting surveillance materials and testifying in court for agencies who have engaged your services. Please use Attachment A Bidder Response Form for any Certifications or Licensing information.

4.1.5 Category III: Fence Rental Services

1. Specialty fencing types available
2. Scope of Work Process
3. Documentation and type of reporting needed/determined
4. Experience with security or privacy fencing needs

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4.1.6 Required Bidder Qualifications

Submit a detailed description of Bidder's Qualifications as a fencing rental agency specializing in security and privacy fencing, military, or public safety experience, and any type of surveillance or property protection services. Please also provide any other fencing/security information pertinent to the Bidder's services and qualifications.

4.2 Employee Requirements and Service Specifications

Employee technical/business experience, certifications, licenses, and CORI/SORI checks must be provided by the vendor/contractor to all departments, cities, towns, and eligible entities doing business through this contract.

Employees must be able to create legible reports and communicate effectively.

Background/CORI/SORI check requirements: Provide information on your company's process in completing background/CORI/SORI checks on employees. Please see links below for details in obtaining CORI and SORI background checks.

4.2.1 Eligible brands and models

All brands and models must meet minimum industry standards. Unless otherwise specified in this Solicitation, any reference to a particular trademark, trade name, patent, design, type, specification, producer, or supplier is not intended to restrict this Solicitation to any manufacturer or proprietor or to constitute an endorsement of any commodity or service, and the department may consider clearly identified offers of substantially equivalent commodities and services submitted in response to such reference.

4.2.2 Delivery Terms

For fence rentals please provide specifics for leased items, including risk of loss, delivery and/or pick-up obligations, acceptance criteria, location details/limitations, etc.

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4.3 Installation

In regard to Fencing Rental Services, Bidders must be able to provide design, installation, disassembly, and re-installation services (which may require re-configuration) Statewide. If any one of these services are required it is the Awarded Bidder's responsibility prior to delivery, to survey and review the particular location to ensure the existing proposed location will meet the manufacturer's established installation, disassembly, and re-installation criteria. Should the proposed installation location not meet established criteria, the Awarded Bidder and the ordering Eligible Entity will attempt to modify the product specifications to meet the criteria.

In the event that a site cannot be modified to meet the criteria then the Awarded Bidder must not provide the design, installation, disassembly or re-installation service and the Eligible Entity must cancel the order with no further obligations. Awarded Bidders not familiar with any location are strongly advised to personally view those locations prior to delivery. A lack of familiarity with a location will in no way relieve an Awarded Bidder from its responsibility to fulfill its contractual obligations.

A successful installation, disassembly and/or reassembly is constituted by the product being fully capable of functioning to its fullest capacity and according to its design and is unencumbered by flaws resulting from poor installation. A final sign-off will be given by user acknowledging acceptance of a successful installation.

The cost for installation, disassembly or re-installation services should not be included by the bidder in the cost of the product. These services must be quoted and agreed to by the eligible entity prior to service, and billed as a separate line item in compliance with the applicable prevailing wage labor rates. Bidders must indicate the use of service subcontractors both on the Price Sheet and on the Bidder Response Form. Please see Section 4.10.3, Fencing Services, for further expectations and parameters around fence rentals.

4.4 Training

Refer to Section 4.1.1 for a list of basic training expectations. Please provide information on additional training Contractor provides employees. Contracted employees must be open and willing to take part in site-specific training(s) to meet expectations of buyer's agency needs.

4.5 Returns/Disposal

All materials must be delivered, picked-up and returned by the contract supplier unless other arrangements are made in advance with the end user. Pricing must include the cost per foot and any labor costs.

4.6 Warranties

List all warranty information as it pertains to security systems and/or equipment and fence rentals.

4.6.1 Maintenance/Post-Warranty support

If there is a security data system failure, it is the Contractor's responsibility to have the data system functioning within 48 hours of the failure. Failure to do so will result in \$350.00 being deducted from the Contractor's payment voucher by the Commonwealth for every 24-hour period the system is in failure.

4.7 Geographic coverage

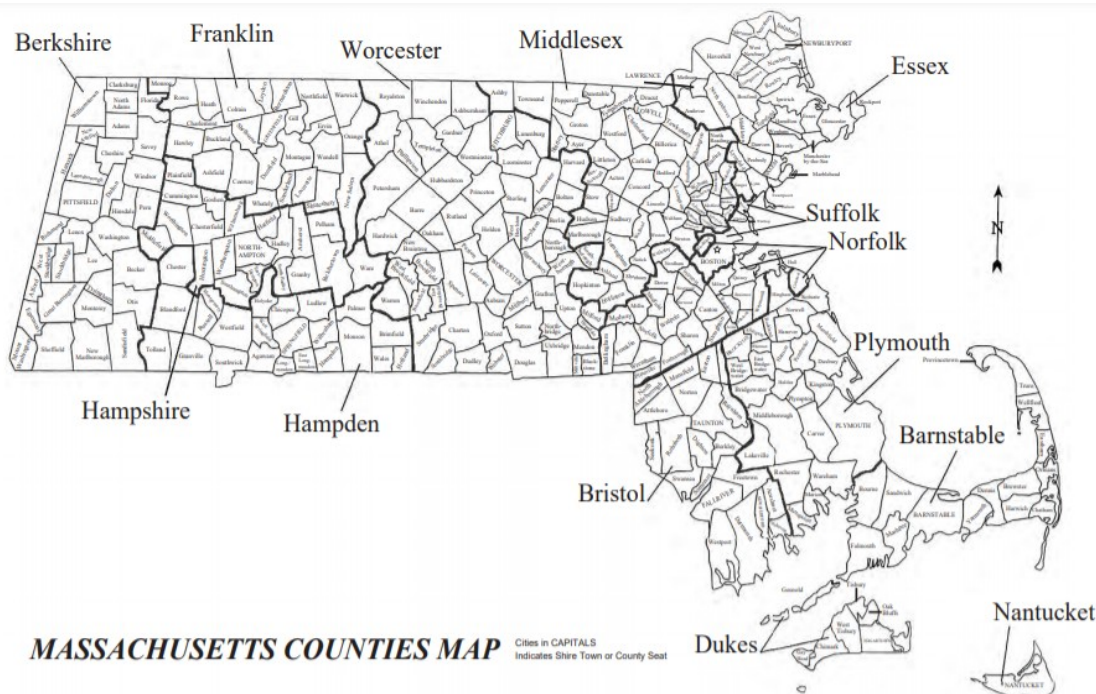
The SST seeks vendors capable of providing service to cover the entire Commonwealth of Massachusetts as detailed in the County Map provided on the following page. Each Bidder must indicate on their Attachment A Bidder Response Form in their bid, the counties that their service will cover or alternatively if they will provide services to cover the entire State. Please click on the following link to see a list of cities and towns in each county https://www.sec.state.ma.us/cis/cispdf/County_Map.pdf.

Counties

- Barnstable
- Berkshire
- Bristol
- Dukes
- Essex
- Franklin

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- Hampden
- Hampshire
- Middlesex
- Nantucket
- Norfolk
- Plymouth
- Suffolk
- Worcester



4.8 Ordering and Quotes

Responding to Buyer's quote requests is a requirement of this contract. Contractors choosing not to bid must respond to COMMBUYS quote requests with a "no bid" by selecting the "Is No Bid" checkbox on the General tab of the quote. Similarly, Contractors choosing not to bid on quote requests received outside of COMMBUYS must respond with a "no bid".

Contractors must provide a quote that clearly identifies all commodities, materials, services and/or requirements which may incur costs for the Eligible Entity. All quotes must be for only products and/or services that Contractor is awarded to sell under this Statewide Contract. Furthermore, Contractors may not bill Eligible Entities for costs not identified in the quote, accepted by the SST, and agreed to by the Eligible Entity unless otherwise specified.

4.9 Environmental Specifications

In 2009, [Executive Order 515](#), establishing an Environmental Purchasing Policy for Executive Departments, was signed. View the Environmentally Preferable Products (EPPs) Procurement Program General Information, Requirements and Guidance for detailed information about the program at <https://www.mass.gov/doc/epp-general-information-requirements-and-guidance/download>.

Bidders should also be aware that in 2021, Senate Bill 9 - An Act Creating a Next Generation Roadmap for Massachusetts Climate Policy was signed to achieve Net Zero emissions in 2050 and furthers the Commonwealth's efforts to combat climate change and protect vulnerable communities. The full Act may be viewed at <https://malegislature.gov/Bills/192/S9>. In 2021, Executive Order 594, Leading By Example: Decarbonizing and Minimizing Environmental Impacts of State Government, was signed. EO594 requires all eligible state agencies to assess and implement strategies to mitigate greenhouse gas emissions and other environmental impacts when planning for and executing projects related to the design, construction, operations, and maintenance of state

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facilities, and the procurement of goods and services, including vehicles. View EO594: Leading By Example requirements at <https://www.mass.gov/executive-orders/no-594-leading-by-example-decarbonizing-and-minimizing-environmental-impacts-of-state-government>.

4.9.1 Environmental Benefit Claims/Labeling

Environmental benefit claims concerning products or services must be consistent with the [Federal Trade Commissions' Guides for the Use of Environmental Marketing Terms](#). Product environmental claims are to include the industry standard the product meets and certifier. Vendors must agree to offer and clearly label products with sustainability certifications and attributes, when available, within specific product categories. Documentation of the certification claimed by the vendor must be supplied upon request if it is not publicly available for verification (on either the vendor's or certifier's website).

Vendors claiming environmental benefits of their products shall list the appropriate benefits or industry standard it meets in the quarterly sales reports, if applicable, or on separate annual reports.

4.9.2 Required Environmental Specifications

A number of environmental product or service specifications have been designated as either mandatory or desirable for the Product/Service category by the EPP Program through EO 515 and can be viewed in the Minimum Environmentally Preferable Products and Services Specifications Guide at <https://www.mass.gov/guides/epp-program-environmentally-preferable-products-and-services-on-statewide-contracts>. All statewide and executive department contracts are required to use these standards, unless otherwise noted in the RFR.

It is desirable for all vendors to make every effort to use/purchase vehicles with higher miles per gallon (MPG) ratings in an effort to reduce their impact on the environment.

If portable toilets are required at a site, it is preferable that environmentally preferred products (compostable and biodegradable) are used for their operation onsite.

4.9.3 Bidder's Current Environmental Practices Form

All RFRs are required to include the Bidder's Current Environmental Practices Form which may be found in Attachment A of the Bidder Response Form.

Bidders must complete this tabbed section of the Bidder Response Form (Attachment A) and submit it with their Quote. The form allows Bidders to communicate existing business practices that foster a sustainable approach to conducting their operations and reduce environment or public health impacts. Bidders may receive additional points in the evaluation phase of the RFR for the environmental initiatives they identify, however, bidders must substantiate all answers to receive additional points.

4.9.4 Environmental plan

Awarded Bidders must agree to work with OSD and the SST to examine the feasibility of implementing an environmental plan throughout the life of the contract. Such a plan may include, but not be limited to, implementing energy initiatives, adopting, and implementing sustainability policies or third-party standards and/or certifications, or publicizing their environmental initiatives. The objective of this requirement is to actively encourage suppliers to incorporate sustainable practices throughout their business operations and further market such practices to Contract users. Bidders may include written proposals submitted as part of Attachment EPPForm1 to their Quote detailing a commitment to action contingent upon receipt of a Contract award.

4.10 Compensation Structure/Pricing

Compensation will be based solely on the pricing submitted by the Bidder and accepted by the SST. Transparent pricing is required; pricing must be submitted for all goods and services to be provided on this Statewide Contract. Pricing will be published on COMMBUYS.

4.10.1 Price

Please note that pricing will carry significant weight in the evaluation process.

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4.10.2 Security and Private Investigative Services

Hourly rates are inclusive ceiling rates. Use Attachment B Price Sheet Cost Table (with associated page tabs) to list the following for each category for which you are responding:

The following price components will be evaluated:

- Hourly rate for Weekdays, Nights, and Weekends
- Hourly rate for Holidays
- Basic Guard
- Wandering Attendant
- Armed*
- Supervisor*
- Volume purchase discounts

Prices shall be firm for the initial contract period of eighteen (18) months from contract inception. After which, a 2% price increase will be considered for the next eighteen (18) months of the contract. Please refer to Attachment B Price Sheet/Cost Table for Security Services and PI Services, and if union wages apply, please complete column as directed in Cost Table.

4.10.3 Fencing Rental Services

Fencing Rental Services will be obtained by the Purchasing Entity by issuing a Request for Quote (RFQ) to awarded contractors who have indicated rental options on their Attachment C Price Sheet/Cost Table. Rental terms must not conflict in any way with the terms set forth in this contract or standard Commonwealth terms and conditions. No rental agreement may extend past the duration of this contract.

Submit Attachment C Fence Rental Price Sheet/Cost Table (submit in Excel, mandatory for fence rental) for Chain link, Chain Link w/privacy, European Fencing, and other Fencing Options (OFO). Define OFO and submit Excel spreadsheet – DO NOT convert to PDF with pricing.

4.10.4 COMMBUYS Setup

The Commonwealth contract manager will establish and enable an MBPO in COMMBUYS which will include line items for all awarded categories of services.

Commonwealth commodity codes are based on the United Nations Uniform Product and Service Code (UNSPSC) and will provide Purchasing Entities with the capability to order only those services authorized by the vendor's contract with the Commonwealth from the Contractor using COMMBUYS. The Contractor is required to maintain the authorized categories for the duration of the contract and must receive prior approval from the Contract Manager before posting any updates or changes, which must be consistent with the terms of the contract.

Commonwealth Agencies are required to obtain quotes from multiple Statewide Contractors prior to issuing a Purchase Order. This will be done by issuing Closed Bids in COMMBUYS to awarded Contractors. Contractors will be required to use COMMBUYS to submit quotes in response to said Closed Bids. Purchase orders under this contract will be based on awarded Quotes.

Responding to COMMBUYS quote requests is a requirement of this contract. Contractors choosing not to bid must respond to COMMBUYS quote requests with a "no bid" by selecting the "Is No Bid" checkbox on the General tab of the quote.

Executive Agencies and other eligible entities participating in the COMMBUYS e-procurement system will place their orders through COMMBUYS and awarded vendors are responsible for checking for quotes and purchase orders through COMMBUYS system. Non-Executive purchasing entities may order outside of the COMMBUYS system through telephone or email.

Awarded Contractors are required to maintain an active registration in COMMBUYS, and to maintain a current email address for the Contractor's contact person. Please refer to [Appendix 1](#) for further details.

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4.10.5 Commodities

Refer to Sections 4.3 and 4.10.3 on Fencing Services.

4.10.6 Other Service Specifications

All employees shall maintain a neat professional appearance during duty hours; shall have a minimum of a High School/GED diploma; and shall receive a background check (CORI and SORI).

NOTE: If in the judgment of the Contracting Agency Liaison any individual performing services under this contract is failing to comply with conditions of the Contract or is failing to carry out his/her duties in a courteous and professional manner, the Contract Liaison shall notify the Contractor who shall take corrective action with its employee. Should such performance not be corrected, the Contract Liaison will notify the Contractor to remove the individual from any duty roster to perform services under this contract.

Employees of the Contractor who operate vehicles as part of their tour of duty must have a valid driver's license, a copy of which must be made available to the Contracting Agency.

All shifts are to be considered "**AWAKE**" positions. Sleeping on any shift will not be tolerated.

No alcohol, drugs, or unauthorized visitors to security personnel or PI are allowed on the site.

4.10.7 Prevailing Wage

Bidders must comply with the [Prevailing Wage Law](#), as administered by the Commissioner of Labor and Workforce Development/Division of Occupational Safety (DOS). All employees of Contractors engaged in these activities must be paid at least these rates for any work performed under a Contract resulting from this RFR when working in a public building or on a public worksite.

4.10.8 Prompt Pay Discount

All Bidders must agree to offer discounts through participation in the Commonwealth Prompt Payment Discount (PPD) initiative for receiving early and/or on-time payments, unless the Bidder can provide compelling proof that it would be unduly burdensome.

Bidders must submit agreeable terms on the Prompt Payment Discount Form (Attachment E), included on the Bid, unless otherwise specified by the SST. The SST will review, negotiate, or reject the offering as deemed in the best interest of the Commonwealth.

The requirement to offer a PPD may be waived by the SST on a case-by-case basis if participation in the program would be unduly burdensome on the Bidder. If a Bidder is claiming that this requirement is a hardship or unduly burdensome, the specific reason must be documented in the Bidder's Quote.

4.10.9 Authorized Price Adjustment and Changes

All price changes must be presented in writing to the Strategic Sourcing Manager (SSM) for review prior to implementation. All price increases must be approved.

5 SUPPLIER DIVERSITY PLAN (SDP)

Program Background

Pursuant to [Executive Order 565](#), the Commonwealth's [Supplier Diversity Program](#) (SDP) promotes business-to-business relationships between awarded Contractors and diverse businesses and nonprofit organizations ("SDP Partners") certified or recognized by the [Supplier Diversity Office \(SDO\)](#).

Financial Commitment Requirements

All Bidders responding to this solicitation are required to make a meaningful financial commitment ("SDP Commitment") to partnering with one or more SDO-certified or recognized diverse business enterprise or non-profit organization. This SDP Commitment must be expressed as a percentage of any contract sales resulting from this solicitation that would be spent with the SDP Partner(s).

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After contract award (if any), the Total SDP Commitment shall become a contractual requirement to be met annually on a Massachusetts fiscal year basis (July 1 – June 30) for the duration of the contract.

The minimum total SDP Commitment acceptable in responses to this solicitation shall be 1%. Bidders shall be awarded additional evaluation points for higher SDP Commitments.

No contract shall be awarded to a Bidder without an SDP Commitment that meets the requirements stated herein. This requirement extends to **all** Bidders regardless of their own supplier diversity certification.

Eligible SDP Partner Certification Categories

SDP Partners must be business enterprises and/or non-profit organizations certified or recognized by the SDO in one or more of the following certification categories:

- Minority-Owned Business Enterprise (MBE)
- Minority Non-Profit Organization (M/NPO)
- Women-Owned Business Enterprise (WBE)
- Women Non-Profit Organization (W/NPO)
- Veteran-Owned Business Enterprise (VBE)
- Service-Disabled Veteran-Owned Business Enterprise (SDVOBE)
- Disability-Owned Business Enterprise (DOBE)
- Lesbian, Gay, Bisexual, and Transgender Business Enterprise (LBGTBE)

Eligible Types of Business-to-Business Relationships

Bidders and Contractors may engage SDP Partners in the following two ways:

- **Subcontracting**, defined as a partnership in which the SDP partner is involved in the provision of products and/or services to the Commonwealth.
- **Ancillary Products and Services**, defined as a business relationship in which the SDP partner provides products or services that are not directly related to the Contractor's contract with the Commonwealth but may be related to the Contractor's own operational needs.

Other types of business-to-business relationships are not acceptable under this contract. All provisions of this RFR applicable to subcontracting shall apply equally to the engagement of SDP Partners as subcontractors.

Program Flexibility

The SDP encompasses the following provisions to support Bidders in establishing and maintaining sustainable business-to-business relationships meeting their needs:

- SDP Partners are **not** required to be subcontractors.
- SDP Partners are **not** required to be Massachusetts-based businesses.
- SDP Partners **may be changed or added** during the term of the contract if the Contractor continues to meet its SDP Commitment.

SDP Plan Form Requirements

All Bidders must complete the SDP Plan Form Attachment D included in this solicitation and attach it to their bid response. In addition to proposing an SDP Commitment, each Bidder must propose one or more SDP Partner(s) to utilize to meet its SDP Commitment. Certified diverse Bidders may not list their own companies, or their subsidiaries or affiliates, as SDP Partners and may not meet their SDP Commitment by spending funds internally or with their own subsidiaries or affiliates.

Bidders may propose SDP Partners that are:

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Document Sensitivity Level: Low

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- **Already certified or recognized by the SDO:** Such partners appear in the [SDO Directory of Certified Businesses](#) or in the [U.S. Dept of Veterans Affairs VetBiz Vendor Information Pages](#) directory. After contract award (if any), spending with such partners will contribute to meeting the Contractor's SDP Commitment.
- **Not yet certified or recognized by the SDO:** Such partners must be certified in eligible categories by a third-party certification body, such as another city or state supplier diversity certification office, the [National Minority Supplier Development Council](#), the [Women Business Enterprise National Council](#), [Disability: IN](#), or the [National LGBT Chamber of Commerce \(NGLCC\)](#), but not listed in the above-mentioned directories. Self-certification is not acceptable. While Bidders may list such proposed SDP Partners on their SDP Plans, spending with such partners will **not** contribute to meeting the Contractor's SDP Commitment unless they apply for and are granted SDO supplier diversity certification or recognition. If proposed SDP Partners do not receive SDO supplier diversity certification or recognition, then the Contractor must find alternative SDP Partners to meet their SDP Commitment.

It is the responsibility of the Contractor to ensure that their proposed SDP Partners obtain such certification or recognition by the SDO after contract award (if any). The issuing department and the SDO will not conduct outreach to proposed SDP Partners to ensure their certification. Furthermore, no guarantee can be made that a proposed SDP Partner will be certified, or regarding the time it may take to process a proposed SDP Partner certification. Contractors may direct partners to the SDO's homepage, www.mass.gov/sdo and the [Certification Self-Assessment Tool](#) for guidance on applying for certification.

It is desirable that Bidders provide an SDP Focus Statement that describe the bidder's overall approach to increasing the participation of diverse businesses in the provision of products and services under this proposal/contract (subcontracting) and in the bidder's general business operations (ancillary products and services). Such a description may include but not be limited to:

- A clearly stated purpose or goal.
- Specific types of diverse and small businesses targeted.
- Which departments/units within the business are responsible for implementing supplier diversity.
- Types of opportunities for which diverse and small businesses are considered.
- Specific measures/methods of engagement of diverse and small businesses.

It is also desirable that Bidders use the SDP Plan Form to describe additional creative initiatives (if any) related to engaging, buying from and/or collaborating with diverse businesses. Such initiatives are separate and distinct from subcontracting and ancillary relationships included in the Bidder's SDP financial commitment and may include but not be limited to:

- Serving as a mentor in a mentor-protégé relationship.
- Technical and financial assistance provided to diverse businesses.
- Participation in joint ventures between nondiverse and diverse businesses.
- Voluntary assistance programs by which nondiverse business employees are loaned to diverse businesses or by which diverse business employees are taken into viable business ventures to acquire training and experience in managing business affairs.

Evaluation of SDP Forms

To encourage substantial Bidder supplier diversity initiatives and commitments as measures valuable to the Commonwealth, at least 25% of the total available evaluation points (100) for this bid solicitation shall be allocated to the evaluation of the SDP Plan submissions. Because the purpose of the SDP is to promote business-to-business partnerships, the Bidders' workforce diversity initiatives will not be considered in the evaluation.

SDP Spending Reports and Compliance

After contract award, Contractors shall be required to provide quarterly reports demonstrating compliance with the agreed-upon SDP Commitment.

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Only spending with SDP Partners that appear in the [SDO Directory of Certified Businesses](#) or in the [U.S. Dept of Veterans Affairs VetBiz Vendor Information Pages](#) directory shall be counted toward a Contractor's compliance with their SDP Commitment. Spending with SDP Partners that do not appear in the directories above shall not be counted towards meeting a Contractor's SDP Commitment.

It is always the responsibility of the Contractor to ensure they meet their SDP Commitment, and the SDO, and the issuing department, assume no responsibility for any Contractor's failure to meet its SDP Commitment.

SDP Spending Verification

The SDO and the contracting department reserve the right to contact SDP Partners at any time to request that they attest to the amounts reported to have been paid to them by the Contractor.

Program Resources and Assistance

Contractors seeking assistance in the development of their SDP Plans or identification of potential SDP Partners may visit the SDP webpage, www.mass.gov/sdp, or contact the SDP Help Desk at sdp@mass.gov.

6 EVALUATION CRITERIA

Contractors must submit responses that meet all the submission requirements of the RFR. Only responsive proposals that meet the submission requirements will be evaluated, scored, and ranked by the evaluation team according to the evaluation criteria. Additional information may be requested for evaluation purposes.

Any submission which fails to meet the submission requirements of the RFR will be found non-responsive without further evaluation unless the evaluation team, at its discretion, determines that the non-compliance is insubstantial and can be corrected. In these cases, the evaluation team may allow the contractor to make minor corrections to the submission.

Bidder scores will be used to rank Bidders and will determine which Bidders will proceed to subsequent stages of the evaluation and/or enter negotiations with the Commonwealth to receive a Contract award.

6.1 Mandatory Requirements

Bidders who do not meet all mandatory requirements may be disqualified. The SST may determine if non-compliance with a mandatory requirement is insignificant or can be corrected or clarified.

Bid terms that include language such as: "must", "shall", "will" and "required" are "mandatory."

6.2 Evaluation Components

The following components will be some of the criteria considered by the team when evaluating each Quote:

1. Price/Pricing
 - a. See Section 4.10 on Compensation & Pricing
2. Years of Industry Experience
 - a. See Section 3.1 on Company Experience and Years in the Industry
3. Manpower Capabilities & Geographic Locations
 - a. See Section 3.2.2 on Capacity Plan and 4.7 on Geographic Coverage
4. Certifications, Licensing, Training Standards, and Professional Development
 - a. See Sections 3.2 - 3.2.1 on Experience, Certifications & Licensing;
 - b. See Sections 4.1.1 - 4.1.6 Training Standards and Professional Development
5. Bidder References
 - a. See Section 3.6 on Reference Requirements

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6. Prompt Pay Discount (PPD)

- a. See Section 4.10.8 on PPD

7. Supplier Diversity Plan (SDP) Commitment

- a. See Section 5 on SDP

6.2.1 Price Components

Please note that price will carry a significant weight in the evaluation process.

The following price components will be evaluated: Basic Security Officer; Armed Security Officer; and Armed/Unarmed Supervisor. Rates for consideration include: Weekday, Nights, Weekends and Holidays.

6.3 Best Value Selection and Negotiation

The SST may select the Quotes(s) which demonstrates the best value overall, including proposed alternatives, that will achieve the goals of the procurement. The SST and a selected Bidder may negotiate a change in any element of Contract performance or cost identified in the original RFR or the selected Bidder's Quote which results in lower costs or a more cost effective or better value than was presented in the selected Bidder's original Quote.

7 INSTRUCTIONS FOR SUBMISSION OF RESPONSES

The Commonwealth will not be responsible for any costs or expenses incurred by Bidders responding to this RFR. Responses must be sent via the "Create Quote" functionality contained in COMMBUYS. For instructions concerning how to submit a Quote, please see Appendix 2.

7.1 Electronic Signatures

Quotes submitted via COMMBUYS must be signed electronically by the Bidder or the Bidder's Agent by accepting the terms and conditions of the bid on the "Terms & Conditions" tab of the Bid in COMMBUYS. By selecting "Save & Continue" on the "Terms and Conditions" tab after accepting the terms and conditions of the bid, the submitter attests that s/he is an agent of the Bidder with authority to sign on the Bidder's behalf, and that s/he has read and assented to each document's terms.

Acceptable Forms of Signature

Effective June 15, 2021, for all 1) CTR forms, including the Standard Contract Form, W-9s, Electronic Funds Transfer (EFT) forms, ISAs, and other CTR-issued documents and forms, or 2) documents related to state finance and within the statutory area of authority or control of CTR (i.e. contracts, payrolls, and related supporting documentation), CTR will accept signatures executed by an authorized signatory in any of the following ways: 1. Traditional "wet signature" (ink on paper); 2. Electronic signature that is either: a. Hand drawn using a mouse or finger if working from a touch screen device; or Page 2 b. An uploaded picture of the signatory's hand drawn signature 3. Electronic signatures affixed using a digital tool such as Adobe Sign or DocuSign. If using an electronic signature, the signature must be visible, include the signatory's name and title, and must be accompanied by a signature date. Please be advised that typed text of a name not generated by a digital tool such as Adobe Sign or DocuSign, even in computer-generated cursive script, or an electronic symbol, are not acceptable forms of electronic signature.

7.2 Limits and Restrictions

7.2.1 Document Pages

Bidders should submit no more than ten (10) double-sided pages (excluding the required forms and attachments) of narrative in response to the questions asked and information requested. If Bidders exceed the page limits, the SST may make provisions to penalize the Bidder in the Evaluation Criteria, read and evaluate only those pages up to the page limit referenced above or take other steps as determined by the SST.>

7.2.2 File Format Restrictions

Bidders must submit file formats readable by MS Word 2000 or later, or by Adobe Acrobat Reader or MS Excel.

All scanned documents must be in .pdf or .gif format and must be scanned in such a way that they can be read on a computer monitor and printed on 8 1/2" x 11" paper, unless otherwise specified. Forms provided for the

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Bidder to complete, must be completed, and submitted in their original formats, NOT scanned and submitted as PDF or other file types.

7.2.3 File Naming Conventions

Files submitted via COMMBUYS must follow the file naming convention specified below. The Description entered during the file upload process ensures each file is readily identified by Company Name and content. The File Name assigned by the Bidder as stored on their computer or network must be structured such that each file can be processed by the upload tool. The upload tool will reject any file name that includes spaces or symbols, like the brackets [] some systems apply when files are downloaded from the Internet.

RFR Section or Quote Component	Description Enter in COMMBUYS during upload	File Name Assign when creating files
Section 2.2 & 3.1 Training Information/Implementatio n Plan (Certs/License Tab of Bidder Form)	Company Name Training Info Company Name Training Requirements Company Name Implementation Plan	CompanyName_BidderRespForm.xlsx
Section 3 Organization/Qualification Info	Company Name Org Chart	CompanyName_OrgAttachmentF.doc
Section 4.10 Pricing	Company Name Pricing Company Name Fence Rental Pricing	CompanyName_PriceSheetB.xls CompanyName_PriceSheetC.xls
Section 4.9.4 EPP (EPP Tab of Bidder Form)	Bidder Current Environmentally Preferable Products/Practices Form	Company Name_BidderRespForm.xls
Section 5 SDP Plan	Company Name SDP Form	CompanyName_SDPformD.doc
Section 4.10.8 PPD	Company Name PPD Form	CompanyName_PPD_FormE.doc

7.3 General Quote Requirements, Provisions, and Prohibitions

7.3.1 Quote Content

Bid specifications for delivery, shipping, billing, and payment will prevail over any proposed Bidder terms entered as part of the Quote, unless otherwise specified in the Bid.

7.3.2 Non-Collusion

By submitting a Quote, the Bidder certifies that the Quote has been arrived at independently and has been submitted without any communication, collaboration, or without any agreement, understanding or planned common course or action with, any other Bidder of the commodities and/or services described in the RFR.

7.3.3 Multiple Quotes

Unless otherwise instructed by the RFR, Bidders may not submit Multiple Quotes in response to a Bid. If a Bidder submits multiple quotes in response to an RFR that does not authorize multiple responses, only the latest dated quote submitted prior to the bid opening date will be evaluated.

7.3.4 Minimum Quote Duration

Bidders' Quotes to this RFR must remain in effect for at least 90 days from the date of Quote submission.

7.3.5 Bidder's Contact Information

It is the Bidder's responsibility to monitor the email address provided in the Quote for the Bidder's contact person. The SST may need to contact the Bidder's contact person with clarification requests or for other reasons. The SST and the Commonwealth assume no responsibility if a Bidder's designated email address is not current, or if technical problems, including those with the Bidder's computer, network, or internet service provider (ISP), cause e-mail communications between the Bidder and the SST to be lost or rejected by any means including email or spam filtering.

7.3.6 Ownership of Submitted Quotes

OSD and the SST shall be under no obligation to return any Quotes or materials submitted by a Bidder in response to this RFR. All materials submitted by Bidders become the property of the Commonwealth of Massachusetts and will not be returned to the Bidder. The Commonwealth reserves the right to use any ideas, concepts, or configurations that are presented in a Bidder's Quote, whether the Quote is selected for Contract award.

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Quotes stored on COMMBUYS in the encrypted lockbox are the file of record. Bidders retain access to a read-only copy of this submission via their COMMBUYS account, if their account is active.

7.3.7 Prohibitions

Bidders are prohibited from communicating directly with any employee of the procuring Department or any member of the SST regarding this RFR except as specified in this RFR, and no other individual Commonwealth employee or representative is authorized to provide any information or respond to any question or inquiry concerning this RFR. Bidders may contact the contact person using the contact information provided in the Header Information this Bid if this RFR is incomplete or information is missing. Bidders experiencing technical problems accessing information or attachments stored on COMMBUYS should contact the OSD Help Desk (see the document cover page for contact information).

7.3.8 Public Records Law

All Quotes and information submitted in response to this RFR are subject to the Massachusetts Public Records Law, M.G.L., Chapter 66, Section 10, and to Chapter 4, Section 7, Subsection 26. Any statements in submitted Quotes that are inconsistent with these statutes shall be disregarded.

7.3.9 Reasonable Accommodation

Bidders with disabilities or hardships that seek reasonable accommodation, which may include the receipt of RFR information in an alternative format, must communicate such requests in writing to the contact person. Requests for accommodation will be addressed on a case-by-case basis. A Bidder requesting accommodation must submit a written statement which describes the Bidder's disability and the requested accommodation to the contact person for the RFR. The SST reserves the right to reject unreasonable requests.

8 REQUIREMENTS FOR DOING BUSINESS AFTER CONTRACT AWARD

The requirements below are specific to the Statewide Contract, if any, awarded as a result of this Bid. Awarded Bidders (Contractors) must also comply with the requirements stated in [Terms and Requirements Pertaining to Awarded Statewide Contracts](#).

8.1 Required Forms

DO NOT SUBMIT THESE FORMS UNTIL INSTRUCTED TO DO SO. The Commonwealth of Massachusetts requires Apparent Successful Bidders to submit the following forms:

- **Standard Contract Form** (watermarked version attached for reference)
- **Commonwealth Terms and Conditions** (signing the Standard Contract Form signifies acceptance of the Commonwealth Terms and Conditions) (watermarked version attached for reference)
- **Contractor Authorized Signatory Listing** (CASL Form)
- **Request for Taxpayer Identification and Verification** (Mass. W9 Form [NOT Federal])
- **Electronic Funds Transfer Sign Up Form** (EFT)
- **Other Forms or requested items that must be submitted in hardcopy only with original signatures**

Apparent Successful Bidders' who agreed to the terms and conditions of these forms electronically via COMMBUYS online Quote submission tool must still submit the above forms within seven (7) calendar days of award notification or their contract may not be executed by the Commonwealth. Bidders who have previous contract(s) with the Commonwealth and have up-to-date, ink-signature version of the Request for Taxpayer Identification and Verification (Mass. Substitute W9 Form) on file with the Office of the State Comptroller may submit copies of the signed forms. However, a new Standard Contract Form and Contractor Authorized Signatory Listing must be submitted for each new contract with the Commonwealth. Please note that the Commonwealth deems void any changes made on or by attachment to the terms in any of these published forms and that, by submitting a bid in response to this RFR, the bidder agrees that they will sign these forms if notified that they are an apparent successful bidder. Please refer to section [7.2 Acceptable Forms of Signature](#).

8.2 Use of COMMBUYS

Awarded Contractors are required to maintain an active registration in COMMBUYS, and to maintain a current email address for the Contractor's contact person. That email inbox must be monitored for communications, including bids

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and notifications from COMMBUYS, OSD, and Eligible Entities. The Commonwealth assumes no responsibility if a Contractor's designated email address is not current, or if technical issues, such as email filtering, computer, network, or ISP problems, cause email communications to be lost or rejected. Awarded contractors must comply with applicable COMMBUYS requirements outlined in Section 9.1.2.4.

8.3 Statewide Contract Vendor Communications Protocol

All awarded contractors will be expected to comply with the following:

- All Statewide Contract questions must be directed to the Commonwealth Contract Manager.
- Make appropriate staff available for periodic meetings with the Commonwealth Contract Manager.
- Provide timely responses to requests.
- Maintain professionalism and courtesy in dealings with OSD and eligible entities.

8.3.1 Changes to Contractor's information

Changes to the Contractor's contact information, company name, legal address, payment address, tax identification number, authorized signatories, SDO-certification status, or EFT information must be promptly reported via email to the Commonwealth Contract Manager. In some cases, additional paperwork will be required to effect the change.

8.3.2 Contractor Account Team

8.3.3 Single Point of Contact

Designate a Single Point of Contact (Contractor Contract Manager) for communications with the Commonwealth Contract Manager.

8.3.4 Replacement of Contractor Staff

Promptly notify the Commonwealth Contract Manager regarding Replacement of Contractor staff.

8.3.5 Adding commodities and/or services only in accordance with the Statewide Contract

8.3.6 Requesting price adjustments only in accordance with Statewide Contract

Refer to Section 4.10.8 for direction on pricing adjustment requests.

8.4 Performance Measures

8.4.1 Minimum Amount of Business with this Contract

In order to remain on this Statewide Contract, Bidders must meet the following requirements regarding the amount of business conducted under the Statewide Contract: Contractors that do not receive a minimum of \$75,000 in any fiscal year during the term of this Contract may have their contract suspended or terminated.

8.4.2 Continued Qualification Based on Performance

The SST intends to review and may requalify all contractors on this contract. This review of each Contractor will be done annually at the contract anniversary and may be done as often as quarterly. This review will include account performance measures, total dollars encumbered by Eligible Entities on each contractor, training capabilities and expectations, and staffing changes/expectations in the business or worksite environments.

Contractors that repeatedly fail to respond to quote requests from Eligible Entities may have their contract suspended or terminated by the Commonwealth Contract Manager.

8.4.2.1 Corrective Action, Suspension and Termination

Failure to comply with contractual requirements of FAC115 will result in corrective action by OSD's Contract Manager, including, but not limited to, implementation of corrective action plans, suspension, and contract termination.

8.4.3 Cover/Replacement Costs

The Commonwealth and eligible entities also reserve the right to seek other damages, including but not limited to, cover and/or replacement costs, should an awarded vendor fail to comply with the requirements of this RFR.

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8.4.3.1 Adding Additional Contractors

Refer to Section 1.3.5 for information on adding Contractors.

8.5 Reporting Requirements and Due Dates

8.5.1 Reporting and Payment Due Dates

Reporting/Payment Period	Quarterly Report/Payment Due Date
January 1st – March 31st	May 15th
April 1st – June 30th	August 15th
July 1st – September 30th	November 15th
October 1 – December 31st	February 15th

8.5.2 Quarterly Sales, SDP Expenditure, and Environmentally Preferable Products Report

OSD has developed a centralized process for collecting sales, SDP, and EPP data. Sales data is used by OSD to measure progress on contract spend from year-to-year. The reporting assists with forecasting future contract spend, evaluating Vendor performance, and tracking Vendor spend towards environmental products and their SDP commitment. EPP reporting allows the EPP Program to annually quantify benefits and spend on sustainable products. Reporting also assists with the development of new contracts and/or new categories of services under existing contracts. In the event the Commonwealth adopts an alternate reporting system, Vendors will be required to utilize such system, as directed by the OSD Contract Manager.

Completion and submission of the Quarterly Sales and SDP Report is a requirement for all awarded Vendors under this contract each quarter. An Awarded Vendor must submit a Quarterly Sales and SDP Report each quarter regardless of whether they have had sales during a quarter.

Vendors are required to submit reports through the Commonwealth's Vendor Report Management (VRM) System which may be accessed via web portal at <https://massosd.gob2g.com>. Vendors must maintain records such that they are able to report, for all invoices submitted under the contract, the purchasing entity name, the invoice number, the invoice date, the product/service description, the unit of measure, the price per unit, the quantity, the line total purchase amount, and any environmentally preferable product reporting requirements as applicable.

8.5.3 Statewide Contract Administration Quarterly Fee Payment and Report

This Statewide Contract is subject to a 1% Contract Administration Fee, which is created pursuant to MGL c. 7, § 3B and 801 CMR 4.02, and which is incorporated by reference into Statewide Contracts with the Operational Services Division (OSD). The price stated in any Bidder's Quote price and any Contractor's Statewide Contract shall be inclusive of this fee and Contractors shall not reflect this fee as a separate line item on customer invoices.

This fee will be based on 1% of the total dollar amounts, adjusted for credits or refunds, paid by Eligible Entities to the Statewide Contractor based on the statewide contract. All "Statewide Contracts" awarded, and all purchase orders and purchases made pursuant to this RFR are subject to this fee. Eligible entities are defined in Section 1.3.7, above.

Note that if the 1% Administration Fee is deductible as a business expense for federal income tax purposes, it is also deductible as an expense for Massachusetts tax purposes.

8.5.3.1 Quarterly Fee Payment

For each Reporting Period, as defined above in the Reporting Requirements and Due Dates section, Statewide Contractor shall pay to OSD a fee equal to one percent (1%) of the total payments (adjusted for credits or refunds) received from all Eligible Entities that have purchased from the Statewide Contractor pursuant to this Agreement. All payments must be received by OSD on or before 45 days after the last day of the Reporting Period or a Contractor will be considered in breach of contract.

Quarterly payments will include any periods less than a full calendar quarter if a contract does not start at the first day of a quarter or end on the last day of the quarter.

Payments are to be made through a web-based secure payment center, which is accessible through a link provided to Statewide Contractors by OSD. All Administration Fee payments are to be made directly through the secure payment center. Payments may be made via Automatic Clearing House (ACH) or by using one of the following credit cards: American Express, Discover, MasterCard and/or Visa. Payment of the Administration

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Fee by check is not permitted unless a contractor makes a written request for an exception and demonstrates, to the satisfaction of OSD's Contract Manager, that compliance poses a hardship.

There is no charge to contractors to use ACH as OSD covers the nominal fee for using the ACH payment method. OSD will NOT cover the convenience fee for selecting credit card. The contractor is responsible for paying this non-refundable fee. The convenience fee (currently established by Statewide Contract PRF59A) is over and above the 1% Administration Fee and is subject to change during the term of the contract resulting from this bid. Prior to the due date for the Statewide Contractor's Administration Fee payment and report, the Statewide Contractor will receive an e-mail from OSD that includes all required information to submit payments via the secure payment center.

8.5.3.2 Statewide Contractor Administration Fee Quarterly Reporting

Electronically submitting your payment, which is comprised of the 1% administration fee of the total payments received by the Contractor from all Eligible Entities for the Quarter, will serve as the Statewide Contractor Administration Fee Report.

Each Statewide Contractor shall submit one Statewide Contractor Administration Fee Report for each Statewide Contract for each Reporting Period. The electronic submission of the payment shall serve as submission of the Statewide Contractor Administration Fee Report. Contractors with 0\$/non-payment reports must still report using the web-based secure payment center to satisfy the Administration Fee Report requirement of the Statewide Contract.

8.5.4 Audit

During the term of this Agreement and for a period of six years thereafter, the Operational Services Division, its auditors, the Office of the Inspector General, the Office of the Attorney General, or other authorized representatives shall be afforded access at reasonable times to Contractor's accounting records, including sales information on any system, reports, or files, in order to audit all records relating to goods sold or services performed pursuant to this Agreement. If such an audit indicates that Contractor has materially underreported Sales, then the Vendor shall be responsible for payment of the costs associated with the audit.

8.5.5 Other Terms

Contractors are responsible for compliance with all other contract reporting requirements including, but not limited to, contract detailed spend, Supplier Diversity Program (SDP) and other contract reports, as required by this contract.

All amounts payable by the Contractor to OSD under this Agreement that are not received by the due date specified shall bear simple interest from the date due until paid. The Late Payment Interest Rate is set by the Office of the State Comptroller on an annual basis and can be found by selecting the fiscal year in question on the [Comptroller's Fiscal Year Updates](#) webpage.

In the event of the Contractor's breach of this policy including, but not limited to, non-reporting, non-payment, late reporting/payment, under-reporting/payment, the Commonwealth reserves the right to pursue all recourse and penalties available including, but not limited to, contract suspension and contract termination. The Commonwealth is allowed to suspend, terminate or debar pursuant to Massachusetts General Laws Chapter 29, Section 29F, as amended, and pursuant to Section 4 of the Commonwealth Terms and Conditions. In addition, in the event the Contractor fails to make any payment when due, the Contractor shall be liable to the Commonwealth for all expenses, court costs, and attorneys' fees (including inside counsel) incurred in enforcing the terms and conditions of this Agreement.

8.5.6 Ad Hoc Reports

The Commonwealth Contract Manager may request additional reports from time to time. The Contractor must comply with these requests to the extent that the information requested is available.

8.6 Payment Related Terms

8.6.1 Bill Payment

All invoices issued pursuant to this contract are payable in accordance with the Comptroller's Bill Payment Policy: <https://www.powerdms.com/public/MAComptroller/documents/1779647>

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8.6.2 Late Payment Fees

Late Payment fees may be assessed only as authorized by the Office of the Comptroller:
<https://www.mass.gov/doc/815-cmr-4-late-penalty-interest/download>

8.6.3 Electronic Funds Transfer (EFT)

All Awarded Contractors must agree to participate in the Commonwealth Electronic Funds Transfer (EFT) program for receiving payments. Additional information about EFT is available on the Comptroller's VendorWeb site located at: <https://massfinance.state.ma.us/VendorWeb/vendor.asp>

Upon notification of award, Contractors are required to enroll in EFT by completing and submitting the "Authorization for Electronic Funds Payment Form" to the SST for review, approval and forwarding to the Office of the Comptroller, unless already enrolled in EFT. This Form shall be supplied to the vendor upon contract award. This form, and all information contained on this form, shall not be considered a public record and shall not be subject to public disclosure through a public records request.

8.6.4 Creditworthiness

No public entity utilizing this contract shall be required, as a condition of purchase, to undergo any creditworthiness review or application process.

8.6.5 Tax Exemption

Payment vouchers or invoices submitted to Massachusetts government entities must not include sales tax.

9 RFR APPENDICES

Appendix 1: Required Terms for all Statewide RFRs

Appendix 2: Electronic Quote Submission Instructions

9.1 APPENDIX 1 – Required Terms for all Statewide RFRs

9.1.1 Applicable Procurement Law

Executive Branch Goods and Services are procured per MGL c. 7, § 22; c. 30, § 51, § 52; 801 CMR 21.00

The terms of 801 CMR 21.00: Procurement of Commodities and Services are incorporated by reference into this RFR. Words used in this RFR shall have the meanings defined in 801 CMR 21.00. Additional definitions may also be identified in this RFR. Unless otherwise specified in this RFR, all communications, Quotes, and documentation must be in English and all cost proposals or figures in U.S. currency. All Quotes must be submitted in accordance with the specific terms of this RFR.

9.1.2 General Procurement Information

9.1.2.1 Access to Security-Sensitive Information

Bidders agree to adhere to this section if an eligible entity provides a Contractor with security-sensitive information which, pursuant to MGL c. 4, § 7, cls. 26(n), is generally exempt from public disclosure under the Commonwealth's public records laws and must, for public safety purposes, be safeguarded from widespread public disclosure. This security-sensitive information is in the form of blueprints, plans, policies, procedures, schematic drawings, which relate to internal layout and structural elements, security measures, emergency preparedness, threat, or vulnerability assessments, and/or any other records relating to the security or safety of persons (pursuant to MGL c. 66A) or buildings, structures, facilities, utilities, transportation, information technology or other infrastructure located within the Commonwealth. Qualified prospective Bidders that are interested in accessing this information for the purpose of preparing a Quote must, before being allowed to access the information, sign a confidentiality agreement, thereby agreeing to:

- i. restrict the use of these sensitive records for any other purpose than as authorized and for the purpose of putting together a bid proposal.
- ii. safeguard the information while it is in their possession (consistent with Section 6 of the Commonwealth Terms and Conditions); and
- iii. return such records and materials to the Commonwealth upon completion of the project.

9.1.2.2 Alterations

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Bidders may not alter (manually or electronically) the Bid language, or any Bid component files, except as directed in the RFR. Modifications to the body of the Bid, specifications, terms, and conditions, or which change the intent of this Bid are prohibited and may disqualify a Quote.

9.1.5 COMMBUYS Market Center

COMMBUYS is the official source of information for this Bid and is publicly accessible at no charge at www.commbuys.com. Information contained in this document and in COMMBUYS, including file attachments, and information contained in the related Bid Questions and Answers (Q&A), are all components of the Bid, as referenced in COMMBUYS, and are incorporated into the Bid and any resulting contract.

Bidders are solely responsible for obtaining all information distributed for this Bid via COMMBUYS. Bid Q&A supports Bidder submission of written questions associated with a Bid and publication of official answers.

It is each Bidder's responsibility to check COMMBUYS for:

- i. Any amendments, addenda, or modifications to this Bid, and
- ii. Any Bid Q&A records related to this Bid.

The Commonwealth accepts no responsibility and will provide no accommodation to Bidders who submit a Quote based on an out-of-date Bid or on information received from a source other than COMMBUYS.

9.1.6 COMMBUYS Registration

Bidders may elect to obtain a free COMMBUYS Vendor registration which provides value-added features, including automated email notification associated with postings and modifications to COMMBUYS records. However, to respond to a Bid, Bidders must register and maintain an active COMMBUYS Vendor profile.

All Bidders submitting a Quote in response to this Bid agree that, if awarded a contract: (1) they will maintain an active vendor account in COMMBUYS; (2) they will, when directed to do so by the procuring entity, activate and maintain a COMMBUYS-enabled catalog using Commonwealth Commodity Codes; (3) they will comply with all requests by the procuring entity to utilize COMMBUYS for the purposes of conducting all aspects of purchasing and invoicing with the Commonwealth, as added functionality for the COMMBUYS system is activated; (4) in the event the Commonwealth adopts an alternate market center system, successful Bidders will be required to utilize such system, as directed by the procuring entity. Commonwealth Commodity Codes are based on the United Nations Standard Products and Services Code (UNSPSC).

9.1.3 Terms and Requirements Pertaining to Awarded Statewide Contracts

9.1.3.1 Contractor's Contact Information

It is the Contractor's responsibility to keep the Contractor's Contract Manager information current. If this information changes, the Contractor must notify the Contract Manager by email immediately, using the address located in the Header Information of the Purchase Order or Master Blanket Purchase Order on COMMBUYS.

The SST and the Commonwealth assume no responsibility if a Contractor's designated email address is not current, or if technical problems, including those with the Contractor's computer, network, or internet service provider (ISP), cause e-mail communications between the Bidder and the SST to be lost or rejected by any means including email or spam filtering.

9.1.3.2 Contractual Status of Orders and Service Contracts

Each order or service contract placed under the Statewide Contract established as a result of this RFR shall be considered a separate Contract between the Contracting Department and the Contractor and shall be deemed to incorporate all the terms and conditions of the Statewide Contract. Nothing contained in any order or service contract shall amend or vary the terms of the Statewide Contract. Additional terms which do not conflict with the Commonwealth's Terms and Conditions, the Massachusetts Standard Contract Form, this RFR and any amendments, or the Bidder Quote, may be included in an order or service contract, if mutually agreed upon by the contractor and the Eligible Entity.

9.1.3.3 Emergency Standby Commodities and/or Services

Contractors may be called upon during a declared state of emergency to supply and/or deliver to the Commonwealth on a priority basis commodity and/or services which are currently under Statewide Contract.

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To accommodate such requests, Contractors may be asked, and must make every effort to service, these requests from regular sources of supply at the rates set forth in any Statewide Contract resulting from this RFR.

9.1.3.4 HIPAA: Business Associate Contractual Obligations

Bidders are notified that any Department meeting the definition of a Covered Entity under the Health Insurance Portability and Accountability Act of 1996 (HIPAA) will include in the RFR or RFQ and resulting contract sufficient language establishing the successful Bidder's contractual obligations, if any, that the Department will require in order for the Department to comply with HIPAA and the privacy and security regulations promulgated thereunder (45 CFR Parts 160, 162, and 164) (the Privacy and Security Rules). For example, if the Department determines that the successful Bidder is a business associate performing functions or activities involving protected health information, as such terms are used in the Privacy and Security Rules, then the Department will include in the RFR and resulting contract a sufficient description of business associate's contractual obligations regarding the privacy and security of the protected health information, as listed in 45 CFR 164.314 and 164.504 (e), including, but not limited to, the Bidder's obligation to: implement administrative, physical, and technical safeguards that reasonably and appropriately protect the confidentiality, integrity, and availability of the protected health information (in whatever form it is maintained or used, including verbal communications); provide individuals access to their records; and strictly limit use and disclosure of the protected health information for only those purposes approved by the department. Further, the Department reserves the right to add any requirement during the contract that it determines it must include in the contract in order for the department to comply with the Privacy and Security Rules.

The above information pertains to contracts with Departments which are entered into under the Statewide Contract. This Bid itself does not fall under HIPAA.

9.1.3.5 Pricing: Federal Government Services Administration (GSA) or Veteran's Administration Supply

The Commonwealth reserves the right to request that the Contractor provide initial pricing schedules and periodic updates available under their GSA or other federal pricing contracts. In the absence of proprietary information being part of such contracts, compliance for submission of requested pricing information is expected within 30 days of any request. If the Contractor receives a GSA or Veteran's Administration Supply contract at any time during the term of the Statewide Contract, the Contractor must notify the Commonwealth Contract Manager.

9.1.3.6 Special Pricing

Statewide Contractors may be asked to offer (and are encouraged to make available) special discounted pricing opportunities to Eligible Entities within the terms of their Statewide Contract. Such price discounts may come in the form of periodic aggregate purchases by Eligible Entities, whereby such entities will request further discounted prices from the Contractor(s) for guaranteed quantities to be purchased. The Statewide Contractor must report to the Strategic Sourcing Manager (SSM) prior to any such price reductions or discounts, or other more favorable terms, being offered to any Eligible Entity beyond those in their Statewide Contract. The SSM reserves the right to approve all price adjustments.

9.1.4 Publicity

Any Statewide Contractor awarded a contract under this RFR is prohibited from selling or distributing any information collected or derived from the Statewide Contract, including lists of participating Entities, Commonwealth employee names, telephone numbers or addresses, or any other information except as specifically authorized by the SST.

9.1.5 Statewide Contractor Marketing Requirements

Statewide Contractors awarded under this RFR must adhere to the following sales/marketing requirements and limitations regarding their Contract: Contractors may only sell those goods and/or services for which they are awarded a Statewide Contract pursuant to this RFR; marketing information must be factual in nature in order to promote those goods and/or services for which the Contractor has a Statewide Contract and must not be critical of other Statewide Contractors; and Contractors must not display the Commonwealth of Massachusetts Seal for commercial purposes because use of the coat of arms and the Great Seal of the Commonwealth for advertising or commercial purposes is prohibited by law. During the life of the Contract, the SST reserves the right to require Contractors to seek and receive prior written approval before distributing marketing information to eligible entities.

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9.1.5.1 OSD Logo Use

Successful Bidders will be provided a COMMBUYS Logo and Statewide Contract Logo (Statewide Contract Logos) for print and online marketing of said Contractor's goods and services available on Statewide Contract. Statewide Contract Logos may only be used for the purpose of promoting the use of Statewide Contracts and does not guarantee any sales of services and/or commodities marketed. Statewide Contract Logos are only allowed to be used by Statewide Contractors who are registered on COMMBUYS and only to market those services/commodities available on their Statewide Contract(s). Statewide Contractor must adhere to all terms in their Statewide Contract(s) and be in good standing, which includes not having any outstanding issues (such as non-compliance with any reporting requirements) and not being debarred, terminated, or suspended, as determined by the Commonwealth Contract Manager and Strategic Sourcing Team (SST). COMMBUYS and other marks, graphics, logos, page headers, icons, scripts unique to OSD on www.mass.gov and www.commbuys.com are the trademarks and/or trade dress and property of the Commonwealth, use of which is prohibited without prior approval by the Commonwealth. In no case shall such trademarks or trade dress be used in any manner that is likely to cause confusion, that disparages or discredits the Commonwealth and in connection with any service or product that is not sponsored, endorsed, or produced by the Commonwealth. OSD reserves the right to accept or reject any proposed uses of the Statewide Contract Logos which do not fully support these terms. All proposed online and print materials are subject to review by OSD, which may assess the appropriateness of proposed content. Use of the logos which does not, in the opinion of OSD, support the general purpose outlined herein may be rejected, including uses that contain libelous, slanderous, obscene, profane, violent, criminal, or otherwise objectionable content, which will be rejected. Statewide Contractors must adhere to the Statewide Contractor Marketing Requirements as set forth in each Statewide Contract. Statewide Contractor acknowledges that their having a Statewide Contract and their use of Statewide Contract Logos is not an endorsement of the Contractor by the Commonwealth or OSD. All marketing materials must be reviewed by the Contract Manager and OSD's Marketing Department for approval before distribution. Should the Statewide Contractor be instructed by OSD to cease utilizing the COMMBUYS Logo and/or Statewide Contract Logo, Statewide Contractor shall promptly remove the logo(s) from all printed and electronic marketing material. OSD reserves the right to terminate the OSD Logo Use of all Statewide Contractors at any time, for any reason, and/or modify the logos. Upon request of OSD to update logo(s) to newer versions, Statewide Contractors shall promptly update their materials accordingly. Marketing information must be factual in nature in order to promote those goods and/or services for which the Contractor has a Statewide Contract and must not be critical of other Statewide Contractors; and Contractors must not display the Commonwealth of Massachusetts Seal for commercial purposes because use of the coat of arms and the Great Seal of the Commonwealth for advertising or commercial purposes is prohibited by law. Contractors may only utilize email lists to market to Commonwealth eligible entities if such emails contain an "Unsubscribe" option in order to allow recipients to opt out of receiving such emails.

9.1.6 Subcontracting Policies

Prior approval of the department is required for any subcontracted service of the Contract. Contractors are responsible for the satisfactory performance and adequate oversight of their subcontractors.

9.1.7 Transaction Fee

In the event the Operational Services Division determines that it is necessary to adopt an alternative funding mechanism for its procurements in the future, including, but not limited to, a transaction fee, the Operational Services Division hereby reserves the right to renegotiate the inclusion and implementation of such a fee and/or other alternative funding mechanisms with the awarded contractors.

9.1.8 Human Trafficking and Forced Labor Prohibition

Contractor acknowledges the Commonwealth requires as a term of this Agreement that Contractor comply fully with all state and federal laws and regulations regarding human trafficking and forced labor.

9.2 APPENDIX 2 - Instructions for Vendors Responding to Bids Electronically through COMMBUYS

Introduction

COMMBUYS refers to all solicitations, including but not limited to Requests for Proposals (RFP), Invitations for Bid (IFB), Requests for Response (RFR), Requests for Quote (RFQ), as "Bids." All responses to Bids are referred to as "Quotes."

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Steps for Bidders to Submit a Quote

1. Launch the COMMBUYS website by entering the URL (www.COMMBUYS.com) into the browser.
2. Enter Bidder login credentials and click the **Login** button on the COMMBUYS homepage. Bidders must be registered in COMMBUYS to submit a Quote. Each contractor has a COMMBUYS Seller Administrator, who is responsible for maintaining authorized user access to COMMBUYS.
3. Upon successful login, the Vendor home page displays with the Navigation and Header Bar as well as the Control Center. The Control Center is where documents assigned to your role are easily accessed and viewed.
4. Click on the **Bids** tab
5. Clicking on the Bid tab opens four sections:
 - a. Request for Revision
 - b. Bids/Bid Amendments
 - c. Open Bids
 - d. Closed Bids
6. Click on the blue **Open Bid** hyperlinks to open and review an open bid
7. A new page opens with a message requesting you acknowledge receipt of the bid. Click Yes to acknowledge receipt of the bid. Bidders should acknowledge receipt to receive any amendments/updates concerning this bid.
8. After acknowledgement, the bid will open.

The top left half of the page contains the following information:

- a. Purchaser
- b. Department
- c. Contact for this bid
- d. Type of purchase
 - i. Open Market
 - ii. Blanket
- e. Pre-Bid Conference details (if applicable)
- f. Ship-to and Bill-to addresses
- g. Any attachments to the bid, which may include essential bid terms, response forms, etc.

The top right half of the bid includes the following information:

- h. Bid Date
- i. Required Date
- j. Bid Opening Date – date the bid closes and no further quotes will be accepted
- k. Informal Bid Flag
- l. Date goods/services are required
9. The lower half of the page provides information about the specific goods/services the bid is requesting.
10. Click **Create Quote** to begin.

11. The General tab for a new quote opens. This page is populated with some information from the bid. Fields available to update include:
 - a. Delivery days
 - b. Shipping terms
 - c. Ship via terms
 - d. Is “no” bid – select if you will not be submitting a quote for this bid
 - e. Promised Date
 - f. Info Contact
 - g. Comments
 - h. Discount Percent
 - i. Freight Terms

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j. Payment Terms

It is important to note that the bid documents (RFR and attachments) may specify some or all these terms and may prohibit you from altering these terms in your response. Read the bid documents carefully and fill in only those items that are applicable to the bid to which you are responding.

Update these fields as applicable to the bid and click **Save & Continue** to save any changes and create a Quote Number.

12. The page refreshes and messages display. Any message in **Red** is an error and must be resolved before the quote can be submitted. Any message in **Yellow** is only a warning and will allow processing to continue.
13. Click the **Items** tab. The Items tab displays information about the items requested in the bid. To view additional details about an item, click the item number (blue hyperlink) to open.
14. The item opens. Input all your quote information and click **Save & Exit**.
15. Click on the **Attachments** Tab. Follow the prompts to upload and name all required attachments and forms and bid response documents in accordance with the instructions contained in the solicitation or bid documents. After uploading each individual file or form, click **Save & Continue**. After you have uploaded all required documents click **Save & Exit**. Be sure to review your attachments to make sure each required document has been submitted.
16. Click on the **Terms & Conditions** Tab. This tab refers to the terms and conditions that apply to this bid. The terms and conditions must be accepted before your quote can be submitted. If your acceptance is subject to any exceptions, those exceptions must be identified here. Exceptions cannot contradict the requirements of the RFR or required Commonwealth standard forms and attachments for the bid. For instance, an RFR may specify that exceptions may or will result in disqualification of your bid.
17. Click the Summary tab. Review the information and update/correct, as needed. If the information is correct, click the **Submit Quote** button at the bottom of the page.
18. A popup window displays asking for verification that you wish to submit your quote. Click **OK** to submit the quote.
19. The Summary tab redisplay with an updated Status for the quote of Submitted.
20. Your quote submission is confirmed only when you receive a confirmation email from COMMBUYS. If you have submitted a quote and have not received an email confirmation, please contact the OSD Help Desk at COMMBUYS@mass.gov.

If you wish to revise or delete a quote after submission, you may do so in COMMBUYS: (1) for a formal bid, prior to the bid opening date, or (2) for an informal bid (which may be viewed upon receipt), prior to the opening of your quote by the issuing entity or the bid opening date, whichever is earlier.

Bidders may not submit Multiple Quotes in response to a Bid unless the Bid authorizes Multiple Quote submissions. If you submit multiple quotes in response to a bid that does not allow multiple quotes, only the latest submission prior to the bid opening date will be evaluated.

10 GLOSSARY

In addition to the definitions found in [801 CMR 21.00](#), which apply to all procurements for goods and services, the definitions found below apply to this Bid. Those definitions below designated with an asterisk (“*”) are quoted directly from 801 CMR 21.00 and are included below for quick reference purposes.

Agency – See Department

Bid – While a bid may generally refer to an offer or response submitted in response to a Solicitation or Request for Response (RFR), in COMMBUYS, a “bid” refers to the solicitation, RFR or procurement.

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Bidder * - An individual or organization proposing to enter a Contract to provide a Commodity or Service, or both, to or for a Department or the State.

Commonwealth Contract Manager – See Strategic Sourcing Manager

Contract * - A legally enforceable agreement between a Contractor and a Department. ANF, OSD and CTR jointly issue Commonwealth Terms and Conditions, a Standard Contract Form and other forms or documentation that Departments use to document the Procurement of Commodities or Services, or both. Watermarked versions of the Standard Contract Form and Commonwealth Terms and Conditions are attached for reference. **DO NOT SUBMIT THESE FORMS UNTIL INSTRUCTED TO DO SO.** COMMBUYS refers to Contract records as “Purchase Orders” or “Blanket Purchase Orders.”

Contractor * - An individual or organization which enters a Contract with a Department or the State to provide Commodities or Services, or both.

Contractor Contract Manager – The individual designated by the Contractor to interface with the Commonwealth.

Department - For the purposes of this Solicitation, the terms “Department,” “Eligible Entity,” “Agency,” “Commonwealth Agency,” and “Contracting Department” include all entities listed in the Eligible Entities section of this RFR. COMMBUYS refers to such entities as “Organizations.”

Eligible Entity – See Department

Environmentally Preferable Product (EPP) - A product or service that has a lesser or reduced effect on human health and the environment when compared with competing products or services that serve the same purpose. Such products or services may include, but are not limited to, those which contain recycled content, minimize waste, conserve energy or water, and reduce the number of toxic materials either disposed of or consumed.

Evaluation – The process, conducted by the Strategic Sourcing Team, of reviewing, scoring, and ranking the submitted Quotes related to this Bid.

FY – See Fiscal Year

Fiscal Year - The year beginning with July first and ending with the following June thirtieth as defined in M.G.L. Chapter 4, Section 7. This may also be referred to as the “State Fiscal Year.”

Organization – See Department

Purchasing Entity – Same as “Eligible Entity.”

Quote or Response - generally refers to the offer submitted in response to a Bid or Request for Response (RFR).

Request for Response (RFR) * – The mechanism used to communicate Procurement specifications and to request Quotes from potential Bidders. An RFR may also be referred to as a “Bid” or “Solicitation.”

Response – The Bidder’s complete submission (or “Quote” as referenced in COMMBUYS) in response to a Solicitation, in other words, a “Bid” or “Proposal.”

Solicitation – See Request for Response (RFR)

SST – See Strategic Sourcing Team

SSM – See Strategic Sourcing Manager

Strategic Sourcing Team (SST) – Representatives from various eligible entities and interested stakeholders that design procurements, develop specifications, conduct Solicitations, evaluate responses to Bids and award Statewide or Department Contracts. The SST also monitors Contractor performance through performance measures and the level of customer satisfaction throughout the life of the Contract. In some agencies, SSTs are referred to as “Procurement Management Teams (PMT).”

Strategic Sourcing Manager (SSM) – Individual designated by the procuring Department to lead the Strategic Sourcing Team and the solicitation and resulting contract. In some agencies SSMs are referred to as “Procurement Team Leads (PTL).” COMMBUYS Refers to the SSM in the H Information section of a Bid as the “Purchaser”.

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